

House File 2490

S-5116

1 Amend House File 2490, as passed by the House, as follows:

2 1. Page 1, line 20, by striking <any> and inserting <the
3 primary>

4 2. Page 1, line 22, before <internet> by inserting <primary>

5 3. Page 1, after line 29 by inserting:

6 <Sec. _____. Section 22.3, Code 2026, is amended to read as
7 follows:

8 **22.3 Supervision — fees.**

9 1. The examination and copying of public records ~~shall~~
10 must be done conducted under the supervision of the lawful
11 custodian of the records or the lawful custodian's authorized
12 designee. The lawful custodian shall not require the physical
13 presence of a person requesting or receiving a copy of a public
14 record and ~~shall must~~ fulfill requests ~~for a copy of a public~~
15 ~~record~~ received in writing, by telephone, or by electronic
16 means. ~~Although While~~ fulfillment of a request ~~for a copy of~~
17 ~~a public record may be contingent upon receipt of~~ depend on
18 payment of reasonable expenses, the lawful custodian shall make
19 every ~~reasonable~~ effort to provide the public record ~~requested~~
20 at no cost other than copying costs ~~for a record which takes~~
21 records that take less than thirty minutes to produce. ~~In the~~
22 ~~event If~~ expenses are ~~necessary, such expenses incurred, the~~
23 expenses shall be reasonable and communicated to the requester
24 upon ~~receipt of~~ receiving the request. The lawful custodian
25 may provide a preliminary cost estimate based on a reasonable
26 assessment of the request, without conducting a full search,
27 retrieval, review, or redaction of the requested public record.
28 If the lawful custodian determines a preliminary cost estimate
29 is to be provided for the request, the lawful custodian may
30 require a deposit of no more than one hundred dollars to
31 conduct the preliminary cost estimate. After conducting the
32 preliminary cost estimate, the lawful custodian shall return
33 the deposit or apply it to payment of the preliminary cost
34 estimate, as applicable, as determined by the requester.
35 The lawful custodian may require advance payment of the

1 preliminary cost estimate before beginning the retrieval,
2 review, redaction, or copying of the requested public record.
3 If the actual expenses exceed the advance payment, the lawful
4 custodian may require full payment before releasing the
5 public record. A person may contest the reasonableness of the
6 lawful custodian's expenses as provided for in this chapter.
7 The lawful custodian may adopt and enforce reasonable rules
8 ~~regarding the examination for examining and copying of the~~
9 ~~public records and the protection of the for protecting records~~
10 against damage or disorganization. The lawful custodian shall
11 provide a suitable ~~place~~ location ~~for the examination examining~~
12 and copying ~~of the public records, but if it is impracticable~~
13 ~~to do the examination.~~ If examining and copying of the records
14 in the office of the lawful custodian is impractical, the
15 ~~person desiring to examine or copy~~ requesting access to the
16 public record shall pay any necessary additional expenses
17 ~~of for providing a place for the examination and copying an~~
18 additional space.

19 2. All reasonable expenses ~~of the examination for examining~~
20 and copying a public record shall be paid by the person
21 ~~desiring to examine or copy~~ requesting access to the public
22 record. The lawful custodian may charge a reasonable fee for
23 supervising the examining and copying of a public record,
24 including the services of the lawful custodian or the lawful
25 custodian's authorized designee in supervising the examination
26 ~~and copying of the records.~~ If copy equipment is available at
27 the lawful custodian's ~~office of the lawful custodian of any~~
28 ~~public records,~~ the lawful custodian shall provide any person a
29 reasonable number of copies of any public record in the custody
30 of the office upon the payment of a fee. The copying fee, ~~for~~
31 ~~the copying service~~ as determined by the lawful custodian,
32 shall not exceed the actual cost of providing the service.
33 Actual costs shall include only ~~these~~ reasonable expenses
34 directly attributable related to supervising the examination
35 ~~of and making and providing copies of public records.~~ Actual

1 costs shall not include charges for ordinary expenses or
2 costs such as employment benefits, depreciation, maintenance,
3 electricity, or insurance associated with the administration of
4 the office of the lawful custodian. Costs for legal services
5 should only be utilized for the redaction or review of legally
6 protected confidential information. A lawful custodian may
7 use reasonable sampling, categorization, prior experience with
8 similar requests, or other methods to prepare a preliminary
9 cost estimate. Preparing the preliminary cost estimate does
10 not require completing the full search, retrieval, review, and
11 redaction process. However, a county recorder shall not charge
12 a fee for ~~the examination~~ examining and copying of public
13 records necessary to complete and file claims for benefits with
14 the Iowa department of veterans affairs or the United States
15 department of veterans affairs.

16 Sec. _____. Section 22.7, subsection 11, paragraph a, Code
17 2026, is amended by adding the following new subparagraphs:

18 NEW SUBPARAGRAPH. (6) The last date the individual,
19 who resigned from or was discharged by the government body,
20 performed work or actively carried out essential functions
21 of the position, regardless of whether the information is
22 contained in a written document, contract, agreement, or
23 arrangement.

24 NEW SUBPARAGRAPH. (7) The amount of moneys and public
25 benefits provided to the individual for any continuation of
26 pay, severance, or other compensation or benefits in excess of
27 the amounts owed for work performed by the individual prior
28 to the individual's last day as an employee, contractor, or
29 appointee for the government body, regardless of whether the
30 information is contained in a written document, contract,
31 agreement, or arrangement.>

32 4. Title page, by striking lines 1 and 2 and inserting
33 <An Act relating to public meetings and records, including
34 public notice requirements for meetings of a governmental body,
35 costs associated with examining and copying public records,

1 and employment separation information for certain government
2 employees, contractors, or appointees.>

3 5. By renumbering as necessary.

COMMITTEE ON STATE GOVERNMENT
KEN ROZENBOOM, CHAIRPERSON